

## CLIENT ADMISSION PACKET



Welcome Letter  
Home Care Services Agreement  
Client Service Rate Sheet/Credit Card Authorization Form (if applicable)  
Client Assessment  
Client Care Plan  
Written Notice of Home Care Consumer Rights  
Agency Disclosure Notice  
Consumer Confidentiality Notice/HIPAA  
Advance Directives Policy  
Financial Obligations & Billing Notice  
Emergency Preparedness Plan Information  
Use of Client Vehicle Authorization



### **WELCOME TO OUR COMPANY!**

Welcome to Dare to Care Home Care you for choosing us as your home care provider. Our mission is to be the foremost provider of meaningful and results-oriented home care connections for seniors and their loved ones. Our vision is to arm today's spectrum of Caregivers with hope, high-impact resources, and the promise of a better tomorrow.

At Dare to Care Home Care, we develop a personalized care plan that directs the care and services we provide to you as a client. We want to work together with you and your family to ensure the highest level of care is provided by trained caregivers.

Our caregivers are provided training in order to provide our clients with quality, person-centered care. We strive to have consistency in your care team, but staff may have days off that can conflict with scheduled shifts. Our office staff works diligently to ensure the caregiver coming to your home can meet your care needs.

### **Office Hours**

Our office is open Monday through Friday between the hours of 830 a.m. and 5 p.m. Our On-Call Supervisor is available after these hours 24 hours per day/365 days per year by calling our main phone number.

We strive to provide meaningful services to each client, but it is possible that you may have a complaint about our staff or services. Please contact our office at 720-842-2153 to express feedback and complaints.

There are many home care choices out there and we sincerely thank you for choosing Dare to Care Home Care. We look forward to working with you.

### **Dare to Care Home Care is located at:**

2851 S. Parker Rd., Ste 440, Ste 440  
Aurora, CO 80014  
720-842-2153

Thank you



### Home Care Services Agreement

- The Home Care Services Agreement ("Agreement") sets forth the terms and conditions under which Dare to Care Home Care ("Agency") will provide services to \_\_\_\_\_ ("Client"). By Client's or Authorized Representative's signature at the bottom of this agreement and/or receipt of services, whichever is first, Client agrees to the terms and conditions in this Agreement.

#### Client Information

First Name: \_\_\_\_\_ Last Name: \_\_\_\_\_

Service Address: \_\_\_\_\_ City: \_\_\_\_\_

State: \_\_\_\_\_ Zip: \_\_\_\_\_

Phone Number: \_\_\_\_\_ Date of Birth: \_\_\_\_\_

Anticipated Start of Care Date: \_\_\_\_\_ Email: \_\_\_\_\_

1. Term of Agreement. The term of this Agreement will start on the first day that Client receives any service from Agency (the "Effective Date") and will continue on an as-needed bases until the Agreement is terminated by either party, as provided in this Agreement.

2. Services Provided. Agency will provide to Client the services and care outlined in the Client's Care Plan ("Services"). The Services to be provided to the Client will be one or more of the following at the identified rates. The *Client Service Rate Sheet* provides detail on the rates and services. *Services* will be provided by employees of the Agency at the Client's home and/or specified service address ("Location").

| Service Types | \$Rate/Hour |
|---------------|-------------|
| Homemaker     |             |
| Personal Care |             |
| 24/7 Care     |             |
| Other: _____  |             |

3. Changes Services. Changes to Services may be initiated by Client and/or his/her representative through a phone call or written communication to the Agency. The Agency requires notice of two (2) calendar days prior to a change of an ongoing schedule.

4. Scheduling. Services will be provided for the hours and days requested by Client, and in accordance with the terms of this Agreement. Agency will schedule employees based on the hours of care requested by the Client. Below is a description of anticipated services to be provided and expected frequency and duration of services.

| <u>Day</u> | <u>Shift Times/Hours</u> | <u>Service(s) Requested</u> |
|------------|--------------------------|-----------------------------|
| Monday     |                          |                             |
| Tuesday    |                          |                             |
| Wednesday  |                          |                             |
| Thursday   |                          |                             |
| Friday     |                          |                             |
| Saturday   |                          |                             |
| Sunday     |                          |                             |

5. Rates, Fees, Payments & Deposits. The Agency will provide the services to the Client for the rates agreed upon on the *Client Service Rate Sheet*. There shall be initial documentation of the agreed upon days and times of services to be provided, based upon the consumer's needs, that is updated at least annually. A deposit is required to start services that is equal to two (2) weeks of anticipated service hours:

**Deposit:** \_\_\_\_\_ (Weekly Hours) X \_\_\_\_\_ (Service Rate) x 2 Weeks = \_\_\_\_\_

6. Billing. The Agency will bill every two (2) weeks and expect payment by Client within thirty (30) days. Any questions regarding your invoice should be directed to the Agency. Payment may be made by check, cash or credit card. An account is considered overdue if not paid within 5 days of the billing date. Interest will be charged on account balances which remain unpaid for 6 days or more after the invoice becomes due at the rate of 5% per month until paid. If Medicaid or another insurance is covering payment they will be billed first.

- Client rates may be increased with 30 days' written notice by the Agency.
- The Client or Authorized Representative is responsible to pay for all services provided and the Agency may terminate or refuse to provide services if there is an unpaid balance.
- Services provided on the following holidays will be billed at 1.5 times the rate stated above, including New Year's Eve (*after 6 pm*), New Years' Day, Easter Sunday, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Eve (*after 6 pm*) and Christmas Day.

7. Cancellations. Cancellations may be made up to 8 hours in advance of a scheduled visit without charge. We reserve the right to charge for a scheduled visit if insufficient notice is not given.

8. Termination. Either "Client" or "Agency" may terminate this agreement at any time upon written notice to the other party. If either party terminates this Agreement, all fees due at time of termination will be due and payable by Client immediately.

9. Transportation. If an employee of the Agency transports a client in their own vehicle or the client's vehicle, the client will release the Agency and/or that employee from all liability

should an injury or accident occur. The employee is required to have insurance and the Client is also required to have insurance.

10. Private/Direct Hiring. The Client may not privately/directly hire an Agency employee for a period of 180 days following the date that employee last provided services for Client. In the event the Client breaks this condition, a replacement fee of \$5,000 is due to the Agency immediately upon employment of that individual.

11. Supplies and Equipment. The Client is responsible for supplying all supplies (i.e. cleaning, personal care, etc.) and equipment which may be necessary in the provision of services. Additional charges may apply if the Agency provides supplies and/or equipment.

12. Care Planning. The Client will be included in developing a Care Plan. The Personal Care Worker will provide home care service(s) requested by, and agreed to by the Client, Authorized Representative and the Agency. The Agency shall make reasonable accommodation of Client's needs and preferences, except where health and safety of the Personal Care Worker is at risk.

13. Questions. You may contact the Agency office with questions, feedbacks or complaints about services. In the event of a medical emergency, you should call 911 immediately. Here is the contact information for our Agency:

**Dare to Care Home Care is located at:**

2851 S. Parker Rd., Ste 440, Ste 440

Aurora, CO 80014

720-842-2153

14. Acknowledgement. By signing this agreement, the Client or Authorized Representative agrees to have received and understand the following policies and/or documents listed below. If I have any questions about these documents I will contact the Agency immediately.

- Welcome Letter
- Home Care Services Agreement
- Client Service Rate Sheet/Credit Card Authorization Form (if applicable)
- Client Care Plan
- Written Notice of Home Care Consumer Rights
- Agency Disclosure Notice
- Consumer Confidentiality Notice/HIPAA
- Advance Directives Policy
- Financial Obligations & Billing Notice
- Emergency Preparedness Plan Information
- Use of Client Vehicle Authorization

I understand that by signing this Agreement that I have read, reviewed and are in agreement with the terms.

---

Client/Authorized Representative Signature

---

Date

---

Agency Representative Signature

---

Date



## Client Service Rate Sheet

### Homemaker (3 Hour Minimum)

\$32/Hour

- Routine Light House Cleaning
- Meal preparation/Dishwashing
- Bed Making/Laundry
- Shopping
- Companionship
- Incidental Transportation

### Personal Care (3 Hour Minimum)

\$35/Hour

- Skin Care/Nail Care
- Ambulation/Exercise
- Bathing/Toileting/Dressing
- Feeding Assistance
- Hair Care/Mouth Care/Shaving
- Positioning/Transfers
- Medication Assistance
- Respiratory Care
- Accompaniment/Protective Oversight/Respite Care

\*Services provided on the following holidays will be billed at 1.5 times the rate stated above, including New Year's Eve (*after 6 pm*), New Years' Day, Easter Sunday, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Eve (*after 6 pm*) and Christmas Day.

Payment Method:

\_\_\_\_\_ Credit Card\* (Please sign Credit Card Authorization Form)

\_\_\_\_\_ Check # \_\_\_\_\_

\_\_\_\_\_ Long Term Care Insurance LTCI Policy # \_\_\_\_\_ Company: \_\_\_\_\_

\_\_\_\_\_ Insurance Policy # \_\_\_\_\_ Contact: \_\_\_\_\_ Phone # \_\_\_\_\_

\_\_\_\_\_  
Client/Client's Representative Signature

\_\_\_\_\_  
Date

\_\_\_\_\_  
Agency Representative Signature

\_\_\_\_\_  
Date



## Credit Card Authorization Form

Our Agency offers the ability to provide a credit card to keep on file in order to automatically process your invoices or make individual payments as desired. Please complete this information and sign where indicated.

Client Name: \_\_\_\_\_  
Client Address: \_\_\_\_\_  
Phone Number: \_\_\_\_\_  
Billing Name/Cardholder Name: \_\_\_\_\_  
Billing Address: \_\_\_\_\_  
Cardholder Telephone: (H) \_\_\_\_\_ (C/W) \_\_\_\_\_

Type of Credit Card: ☐ Visa ☐ MasterCard ☐ Discover ☐ American Express

Card Number: \_\_\_\_\_  
Expiration Date: \_\_\_\_\_ Card Verification #: \_\_\_\_\_

### Payment Authorizations

#### A. Initial Deposit Payment Authorization (Optional):

I authorize Dare to Care Home Care to charge my credit card:

\$\_\_\_\_\_ for any required initial deposit. \$\_\_\_\_\_ for any required health supplies.

For a total of: \$ \_\_\_\_\_

#### B. Recurring/Automatic Payment Authorization (Optional):

I authorize Dare to Care Home Care to automatically charge this account for future invoices and I understand that by selecting "Yes" below, I hereby authorize this Agency to make recurring charges to my credit card based upon my standard billing schedule of up to, but no more than \$\_\_\_\_\_ and, if necessary, initiate adjustments for any transactions credited/debited in error. This authority will remain in effect until Dare to Care Home Care is notified by me in writing to cancel it in such time as to afford the Agency and the credit card processing company a reasonable opportunity to act on it.

**Automatically charge this account for future invoices:** ☐ Yes ☐ No

**C. Past Due Invoices :** I authorize Dare to Care Home Care to charge my account if my bill is not paid in full within \_\_\_\_\_ days following the invoice due date.

**D. General Authorization:** I authorize Dare to Care Home Care to charge my credit card as indicated above or any time upon my verbal authorization. I agree that I will pay for services rendered and health supplies provided and indemnify and hold Dare to Care Home Care harmless against any liability pursuant to these authorizations. I understand that my signature on this form will serve as authorized signature on the credit card charge slip.

\_\_\_\_\_  
Signature of Cardholder

Date



### Client Assessment

Client Last Name: \_\_\_\_\_ First Name: \_\_\_\_\_ DOB: \_\_\_\_\_  
Service Address: \_\_\_\_\_ City: \_\_\_\_\_ Zip: \_\_\_\_\_  
Phone #: \_\_\_\_\_ Email: \_\_\_\_\_

Height: \_\_\_\_\_ Weight: \_\_\_\_\_ Gender: M/F Marital Status: Single/Married/Divorced/Widowed Spouse: \_\_\_\_\_

Lives With: \_\_\_\_\_ Religion: \_\_\_\_\_ Attends Services: Y/N

Emergency Contacts (name/phone/email): \_\_\_\_\_

Language: \_\_\_\_\_ Past Profession: \_\_\_\_\_ Pets: \_\_\_\_\_

### Legal/Financial Information

Durable Power of Attorney: \_\_\_\_\_ Copy of POA obtained: (Y/N)

Health Surrogate: \_\_\_\_\_ DNR: (Y/N) On Sight? \_\_\_\_\_

Responsible for Payments: \_\_\_\_\_ (Client/Spouse/POA)

Payment Method: ☐ Checks ☐ ACH ☐ Credit Card ☐ Other: \_\_\_\_\_

Deposit Check Quoted (Rate x Weekly Hours x 2) \$ \_\_\_\_\_ Deposit Check Obtained (Y/N) \_\_\_\_\_

Long Term Care Insurance? (Y/N) \_\_\_\_\_ Assignment of Benefits? (Y/N) \_\_\_\_\_

Policy/Claim#: \_\_\_\_\_ Case Manager: \_\_\_\_\_ Phone: \_\_\_\_\_

Eligible Veteran or Spouse? (Y/N) \_\_\_\_\_ Service Dates: \_\_\_\_ to \_\_\_\_

### Medical/Health Information

#### Functional Limitations

|           |                                       |               |                              |                   |
|-----------|---------------------------------------|---------------|------------------------------|-------------------|
| Speech    | Hearing                               | Legally Blind | Incontinence (Bowel/Bladder) | Protective Briefs |
| Catheter  | Ambulation (cane, walker, wheelchair) | Paralysis     | Contractures                 |                   |
| Endurance | Shower Chair                          | Oxygen        | Bedside Commode              |                   |

Allergies: \_\_\_\_\_  
\_\_\_\_\_

Other: \_\_\_\_\_



**Medical Contacts**

Physician: \_\_\_\_\_ Phone: \_\_\_\_\_

Therapist: \_\_\_\_\_ Phone: \_\_\_\_\_

Preferred Hospital: \_\_\_\_\_

**Cardiovascular**

Hypertension      Anemia      Palpitations      Stroke      Pacemaker      Heart Attack

Edema      Other: \_\_\_\_\_

**Respiratory**

Cough      Sputum      Blood      Tracheotomy      Emphysema

Ventilator      Asthma      COPD      Other: \_\_\_\_\_

**Continence/Urinary**

Incontinence      Kidney Stones      Catheter      Renal/Bladder      Prostate Problems

Uterine Problems      Other: \_\_\_\_\_

**Gastrointestinal**

Nausea      Weight Loss/Gain      Hemorrhoids      Constipation      Laxative Use

Heartburn      Intestinal Gas      Chewing/Swallowing Issues      Ulcer      Hernia

Dentures (Full, Partial, Upper, Lower)      Other: \_\_\_\_\_

**Neurological**

Headaches      Orientation/Dizziness      Dementia/Alzheimer's      Sensory Loss      Seizures

Memory Loss      Paralysis      Slurring      Other: \_\_\_\_\_

**Musculoskeletal**

Balance Problems      Arthritis      Prosthesis      Spasms

Atrophy      Joint Replacement      Other: \_\_\_\_\_

**Skin/Pain**

No problems      Bruises/Cause      Frail      Other: \_\_\_\_\_

Pain Intensity (1 to 5, 1 Mild and 5 Intolerable)      Location of Pain: \_\_\_\_\_      Medications \_\_\_\_\_

Notes/Comments: \_\_\_\_\_

\_\_\_\_\_

\_\_\_\_\_

Agency Representative Signature

Date



### Client Care Plan

Client Last Name: \_\_\_\_\_ First Name: \_\_\_\_\_ DOB: \_\_\_\_\_

Service Address: \_\_\_\_\_ City: \_\_\_\_\_ Zip: \_\_\_\_\_

Phone #: \_\_\_\_\_

**Service Type:** Homemaker Personal Care 24/7 Other: \_\_\_\_\_

| Services                            | Hours | Mon | Tue | Wed | Thu | Fri | Sat | Sun | Comments |
|-------------------------------------|-------|-----|-----|-----|-----|-----|-----|-----|----------|
| Shift Start                         |       |     |     |     |     |     |     |     |          |
| Shift End                           |       |     |     |     |     |     |     |     |          |
| Total Hours                         |       |     |     |     |     |     |     |     |          |
| <b>Homemaker</b>                    |       |     |     |     |     |     |     |     |          |
| House Cleaning                      |       |     |     |     |     |     |     |     |          |
| Meal Prep                           |       |     |     |     |     |     |     |     |          |
| Dishwashing                         |       |     |     |     |     |     |     |     |          |
| Bed Making                          |       |     |     |     |     |     |     |     |          |
| Laundry                             |       |     |     |     |     |     |     |     |          |
| Shopping                            |       |     |     |     |     |     |     |     |          |
| Companionship                       |       |     |     |     |     |     |     |     |          |
| Incidental Transportation           |       |     |     |     |     |     |     |     |          |
| <b>Personal Care</b>                |       |     |     |     |     |     |     |     |          |
| Skin Care/Nail Care                 |       |     |     |     |     |     |     |     |          |
| Hair Care/Mouth Care/Shaving        |       |     |     |     |     |     |     |     |          |
| Ambulation/Exercise                 |       |     |     |     |     |     |     |     |          |
| Dressing                            |       |     |     |     |     |     |     |     |          |
| Bathing/Toileting                   |       |     |     |     |     |     |     |     |          |
| Feeding Assistance                  |       |     |     |     |     |     |     |     |          |
| Positioning/Transfers               |       |     |     |     |     |     |     |     |          |
| Medication Assistance               |       |     |     |     |     |     |     |     |          |
| Respiratory Care                    |       |     |     |     |     |     |     |     |          |
| Respite Care                        |       |     |     |     |     |     |     |     |          |
| Accompaniment/ Protective Oversight |       |     |     |     |     |     |     |     |          |
| Other: _____                        |       |     |     |     |     |     |     |     |          |

Comments/Instructions/Supplies: \_\_\_\_\_

*Supervisory Visits will be performed every 90 days to review the Care Plan.*

**Client Care Plan (continued)**

Start of Care Date: \_\_\_\_\_

Advance Directive: \_\_\_\_ Yes \_\_\_\_ No

|                                                            |  |
|------------------------------------------------------------|--|
| Emergency Contact: (Name, Relationship, Phone Number)      |  |
| Primary Care Physician:                                    |  |
| Identified Problems:                                       |  |
| Allergies:                                                 |  |
| Dietary Restrictions:                                      |  |
| Functional Status:                                         |  |
| Assistive Devices:                                         |  |
| Psychosocial: (Alert, Oriented, Confused, Forget, Wanders) |  |
| Functional Limitations:                                    |  |
| Care Goals:                                                |  |
| Supplies Needed:                                           |  |

Special Requests/Instructions: \_\_\_\_\_

Supervisor Name and Number: \_\_\_\_\_

\_\_\_\_\_  
Client/Client's Representative Signature\_\_\_\_\_  
Date\_\_\_\_\_  
Agency Representative Signature\_\_\_\_\_  
Date

### Fall Risk Assessment

Client Name: \_\_\_\_\_ Date: \_\_\_\_\_ Staff Name: \_\_\_\_\_

**If 6 or more factors are applicable client is HIGH RISK. Interventions implemented based on client's condition.**

| Factor                              | Check If Applicable | Intervention           | Check if Intervention Done | Additional Interventions |
|-------------------------------------|---------------------|------------------------|----------------------------|--------------------------|
| Fall w/i last 12 months             |                     | Evaluate cause         |                            |                          |
| Muscle weakness                     |                     | Request assistance     |                            |                          |
| Unsteady Gait                       |                     | Request assistance     |                            |                          |
| Connected to tubing (O2, IV, other) |                     | Awareness              |                            |                          |
| Use of assistive device             |                     | Appropriate use advice |                            |                          |
| Balance deficit/ dizziness          |                     | Change position slowly |                            |                          |
| Urinary incontinency/ urgency       |                     | Commode                |                            |                          |
| Confusion                           |                     | Review medications     |                            |                          |
| Impaired memory/ judgement          |                     | Written instructions   |                            |                          |
| Seizure disorder                    |                     | Precautions education  |                            |                          |
| More than 4 medications             |                     | Review medications     |                            |                          |
| Use of psychotropic, diuretic drugs |                     | Review medications     |                            |                          |
| Bathroom                            |                     | Grab bar(s) present    |                            |                          |
| Toilet seat low                     |                     | Elevated toilet seat   |                            |                          |
| Poor light                          |                     | Extra lighting         |                            |                          |
| Loose rugs/slippy floor             |                     | Remove hazard          |                            |                          |
| Walkways cluttered                  |                     | Remove hazard          |                            |                          |
| Cords in pathway                    |                     | Remove hazard          |                            |                          |
| Phone, etc. not within reach        |                     | Place within reach     |                            |                          |



### **Written Notice of Home Care Consumer Rights**

As a consumer of home care and services you are entitled to receive notification of the following rights both orally and in writing. **You have the right to exercise the following rights without retribution or retaliation from HCA staff:**

1. Receive written information concerning the HCA's policies on advance directives, including a description of applicable state law;
2. Receive information about the care and services to be furnished, the disciplines that will furnish care, the frequency of proposed visits in advance and receive information about any changes in the care and services to be furnished;
3. Receive care and services from the HCA without discrimination based upon personal, cultural or ethnic preference, disabilities or whether you have formulated an advance directive;
4. Authorize a representative to exercise your rights as a consumer of home care;
5. Be informed of the full name, licensure status, staff position and employer of all persons supplying, staffing or supervising the care and services you receive;
6. Be informed and participate in planning care and services and receive care and services from staff who are properly trained and competent to perform their duties;
7. Refuse treatment within the confines of the law and be informed of the consequences of such action;
8. Participate in experimental research only upon your voluntary written consent;
9. Have you and your property to be treated with respect and be free from neglect, financial exploitation, verbal, physical and psychological abuse including humiliation, intimidation or punishment;
10. Be free from involuntary confinement, and from physical or chemical restraints;
11. Be ensured of the confidentiality of all of your records, communications, and personal information and to be informed of the HCA's policies and procedures regarding disclosure of clinical information and records;
12. Express complaints verbally or in writing about services or care that is or is not furnished, or about the lack of respect for your person or property by anyone who is furnishing services on behalf of the HCA.

**If you believe your rights have been violated you may contact the HCA directly:**

Dare to Care Home Care 2851 S. Parker Rd., Ste 440, Aurora, CO 80014

HCA Manager Re'Jane Branch - 720-842-2153

**You may also file a complaint with the Health Facilities and Emergency Medical Services Division of the Colorado Department of Public Health and Environment via mail or telephone:**

**4300 Cherry Creek Drive South, Denver, CO 80246, 303-692-2910 or 1-800-842-8826**

I attest to verbal and written receipt of the aforementioned notice of rights:

\_\_\_\_\_  
Consumer or Authorized Representative Signature

\_\_\_\_\_  
Date

HCA Representative Signature \_\_\_\_\_

Date \_\_\_\_\_

Dare to Care Home Care, 2851 S. Parker Rd., Ste 440, Aurora, CO 80014, 720-842-2153



### Agency Disclosure Notice

Agency Type: ☐ Home Care Placement ☐ Home Health Care ☐ Personal Care/Non-Medical

Each home care agency or home care placement agency is required to provide the consumer information as to the responsibilities of the agency, the home care worker, and the consumer regarding the employment and duties of each.

- Agency is the employer of record for all staff providing direct care services and is responsible for all items listed below.
- Responsibilities are delineated below:

| Consumer | Worker | HCA                                                                               |
|----------|--------|-----------------------------------------------------------------------------------|
|          |        | Employer of the home care worker.                                                 |
|          |        | Supervision of the home care worker.                                              |
|          |        | Scheduling of the home care worker.                                               |
|          |        | Assignment of duties to the home care worker.                                     |
|          |        | Hiring, firing and discipline of the home care worker.                            |
|          |        | Provision of supplies or materials for use in providing services to the consumer. |
|          |        | Training and ensuring qualifications that meet the needs of the consumer.         |
|          |        | Liability for the home care worker while in the consumer's home.                  |
| Consumer | Worker | HCA                                                                               |
|          |        | Payment of:                                                                       |
|          |        | Wages to the home care worker.                                                    |
|          |        | Employment taxes for the Home Care Worker.                                        |
|          |        | Social Security taxes for the Home Care Worker.                                   |
|          |        | Unemployment insurance for the Home Care Worker.                                  |
|          |        | General liability insurance for the Home Care Worker.                             |
|          |        | Worker's Compensation for the Home Care Worker.                                   |
|          |        | Bond Insurance (if provided).                                                     |

The above information and areas of responsibility have been explained and any questions have been answered in regard to responsibilities held by the consumer, home care worker and agency. Consumer or Authorized Representative: \_\_\_\_\_ Date: \_\_\_\_\_

Home Care Worker : \_\_\_\_\_ Discipline: \_\_\_\_\_ Date: \_\_\_\_\_  
(if not employee or contractor to the agency where the agency holds full responsibility)

HCA Representative: \_\_\_\_\_ Title: \_\_\_\_\_ Date: \_\_\_\_\_

Printed Name of Consumer: \_\_\_\_\_ Start of Care Date: \_\_\_\_\_



### **Consumer Confidentiality Notice/HIPAA**

The Agency strives to ensure confidentiality of consumer records, personal and financial information. This includes providing consumer information only to appropriate staff members and protected record storage procedures. The Agency shall not refuse to share consumer care information unless the consumer has chosen to refuse coordination with external HCAs.

Disclosure of consumer clinical information and records may be necessary in certain circumstances. These circumstances include, but are not limited to:

- If requested by the Client and/or Authorized Representative.
- In external coordination with other agencies, companies, providers, clinicians or other health care professionals for the purpose of providing care services or products related to your care.
- An emergent situation that needs immediate information to provide healthcare services.
- If required by law or process to disclose information to a law enforcement or government HCA.
- Providing information to family members or interested parties that are approved by the Client or appointed representative.

Additionally, for the handling of PHI (Personal Health Information) based on HIPAA Privacy Practices, please review our policies below.

If you have any questions about the confidentiality of your consumers records, please contact our Agency at:

**Dare to Care Home Care is located at:**

2851 S. Parker Rd., Ste 440, Ste 440  
Aurora, CO 80014  
720-842-2153



## **Notice of Provider Privacy Practices (HIPAA) and Acknowledgement**

**THIS NOTICE DESCRIBES HOW MEDICAL INFORMATION ABOUT YOU MAY BE USED AND DISCLOSED AND YOUR RIGHTS WITH RESPECT TO THIS INFORMATION. PLEASE REVIEW THIS NOTICE CAREFULLY.**

Dare to Care Home Care must maintain the privacy of your personal health information and give you this notice that describes our legal duties and privacy practices concerning your personal health information. We must follow the privacy practices described in this notice and as outlined in the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule. If you have any questions about this notice, please contact the Privacy Officer or security official (referred to in this Notice as the "POX") whose contact information is at the end of this Notice under the heading Complaints. The POX is responsible for the development and implementation of the policies and procedures necessary for compliance with HIPAA.

### **Our Obligations**

We are required by law to:

- Maintain the privacy of personal health information.
- Give you this notice of our legal duties and privacy practices regarding health information about you.
- Follow the terms of our notice that is currently in effect.

### **How We May Use and Disclose Protected Health Information**

The following describes the ways we may use and disclose health information that identifies you ("Protected Health Information"), Disclosure includes divulging via online services, emails, text messages, mobile apps, and Web portals. Except for the purposes described below, we will use and disclose Protected Health Information only with your written permission. You may revoke your written permission at any time by writing to our POX.

**For Treatment.** We may use and disclose Protected Health Information for your treatment and to provide you with treatment related health care services. For example, we may disclose Protected Health Information to doctors, nurses, technicians, or other personnel, including people outside our office, who are involved in your medical care and need the information to provide you with medical care.

**For Payment.** We may use and disclose Protected Health Information so that we or others may bill and receive payment from you, an insurance company or a third party for the treatment and services you received. For example, we may give your health plan information about you so that they will pay for your treatment.

**For Health Care Operations.** We may use and disclose Protected Health Information for health care operations. These uses and disclosures are those we deem necessary as we strive to have all of our clients receive quality care and to proficiently operate and manage our offices. For example, we may use your Protected Health Information or your answers to a client satisfaction survey in evaluating the quality of services provided by our staff. We may also disclose your Protected Health Information to our auditors, attorneys, or other professional advisors. We also may



share information with other entities that have a relationship with you (for example, your health plan) for their health care operation activities.

**Appointment Reminders, Treatment Alternatives and Health Related Benefits and Services.** We may use and disclose Protected Health Information to contact you to remind you that you have an appointment with us. We also may use and disclose Protected Health Information to tell you about treatment alternatives or health-related benefits and services that may be of interest to you.

**Individuals Involved in Your Care or Payment for Your Care.** Unless you object, we may disclose your Protected Health Information to your family, relatives, friends or any other person involved in your care or the payment for your care or any other person you identify. If you are unable to agree or object to such a disclosure, we may disclose such information as necessary if we determine that it is in your best interest based on our professional judgment.

**Disaster Relief.** We may disclose your Protected Health Information to disaster relief organizations that seek your Protected Health Information to coordinate your care, or notify family and friends of your location or condition in a disaster.

**Research.** Under certain circumstances, we may use and disclose Protected Health Information for health-related research. For example, a research project may involve comparing the health of clients who received one treatment to those who received another, for the same condition. Before we use or disclose Protected Health Information for research, the project will go through a special approval process. Even without special approval, we may permit researchers to look at records to help them identify clients who may be included in their research project or for other similar purposes, as long as they do not remove or take a copy of any Protected Health Information.

#### **Special Situations**

**As Required by Law.** We will disclose Protected Health Information when required to do so by international, federal, state or local law.

**To Avert a Serious Threat to Health or Safety.** We may use and disclose Protected Health Information when necessary to prevent a serious threat to your health and safety or the health and safety of the public or another person. Disclosures, however, will be made only to someone who may be able to help prevent the threat.

**Business Associates.** We may use and disclose Protected Health Information in connection with our business associates that perform functions on our behalf or who provide us with services if the information is necessary for such functions or services. For example, we may use a vendor/business associate to provide services such as: (i) legal, (ii) debt collection, (iii) data aggregation and processing, (iv) billing and collection functions, (v) conducting client satisfaction surveys, and (vi) developing a blended care model for delivery of care services for persons needing care in their homes through a combination of technologies, remote services and in home services. All of our business associates are obligated to protect the privacy of your information and are not allowed to use or disclose any information other than as specified in our contract with them.

**Organ and Tissue Donation.** If you are an organ donor, we may use or disclose Protected Health Information to organizations that handle organ procurement or other entities engaged in procurement, banking or transportation of organs, eyes or tissues to facilitate organ, eye or tissue donation and transplantation.

**Military and Veterans.** If you are a member of the armed forces, we may disclose Protected Health Information as required by military command authorities. We also may disclose Protected Health Information to the appropriate foreign military authority if you are a member of a foreign military.

**Workers' Compensation.** We may disclose Protected Health Information for workers' compensation or similar programs. These programs provide benefits for work-related injuries or illness.

**Public Health Risks.** We may disclose Protected Health Information for public health activities. These activities generally include disclosures to prevent or control disease, injury or disability; report births and deaths; report child abuse or neglect; report reactions to medications or problems with products; notify people of recalls of products they may be using; a person who may have been exposed to a disease or may be at risk for contracting or spreading a disease or condition; and the appropriate government authority if we believe a client has been the victim of abuse, neglect or domestic violence. We will only make this disclosure if you agree or when required or authorized by law.

**Health Oversight Activities.** We may disclose Protected Health Information to a health oversight agency for activities authorized by law. These oversight activities include, for example, audits, investigations, inspections, and licensure. These activities are necessary for the government to monitor the health care system, government programs, and compliance with civil rights laws.

**Data Breach Notification Purposes.** We may use or disclose your Protected Health Information to provide legally required notices of unauthorized access to or disclosure of your Protected Health Information.

**Lawsuits and Disputes.** If you are involved in a lawsuit or a dispute, we may disclose Protected Health Information in response to a court or administrative order. We also may disclose Protected Health Information in response to a subpoena, discovery request, or other lawful process by someone else involved in the dispute, but only if efforts have been made to tell you about the request or to obtain an order protecting the information requested.

**Law Enforcement.** We may disclose Protected Health Information if asked by a law enforcement official if the information is: (1) in response to a court order, subpoena, warrant, summons or similar process; (2) limited information to identify or locate a suspect, fugitive, material witness, or missing person; (3) about the victim of a crime even if, under certain very limited circumstances, we are unable to obtain the person's agreement; (4) about a death we believe may be the result of criminal conduct; (5) about criminal conduct on our premises; and (6) in an emergency to report a crime, the location of the crime or victims, or the identity, description or location of the person who committed the crime.

**Coroners, Medical Examiners and Funeral Directors.** We may disclose Protected Health Information to a coroner or medical examiner. This may be necessary, for example, to identify a deceased person or determine the cause of death. We also may disclose Protected Health Information to funeral directors as necessary for their duties.

**National Security and Intelligence Activities.** We may disclose Protected Health Information to authorized federal officials for intelligence, counter-intelligence, and other national security activities authorized by law.

**Protective Services for the President and Others.** We may disclose Protected Health Information to authorized federal officials so they may provide protection to the President, other authorized persons or foreign heads of state or to conduct special investigations.

**Inmates or Individuals in Custody.** If you are an inmate of a correctional institution or under the custody of a law enforcement official, we may disclose Protected Health Information to the correctional institution or law enforcement official. This disclosure would be if necessary: (1) for the institution to provide you with health care; (2) to protect your health and safety or the health and safety of others; or (3) the safety and security of the correctional institution.

**Uses and Disclosures That Requires Us To Give You An Opportunity To Object and Opt Out**

If a question about disclosure of your Protected Health Information comes about and you are present and capable of making a decision, we will endeavor to provide you with an opportunity to object to a disclosure, or, in the alternative, we will use our professional judgment to determine that you do not object.

#### **Your Written Authorization Is Required For Other Uses and Disclosures**

The following uses and disclosures of your Protected Health Information will be made only with your written authorization:

1. Uses and disclosures of Protected Health Information for marketing purposes; and
2. Disclosures that constitute a sale of your Protected Health Information

Other uses and disclosures of Protected Health Information not covered by this Notice or the laws that apply to us will be made only with your written authorization. If you do give us an authorization, you may revoke it at any time by submitting a written revocation to our POX and we will no longer disclose Protected Health Information under the authorization. But disclosure that we made in reliance on your authorization before you revoked it will not be affected by the revocation.

#### **Your Rights**

You have the following rights regarding Protected Health Information we have about you:

**Right to Inspect and Copy.** You have a right to inspect and copy Protected Health Information that may be used to make decisions about your care or payment for your care. This includes medical and billing records, other than psychotherapy notes. To inspect and copy this Protected Health Information, you must make your request, in writing, to the POX. We have up to 30 days to make your Protected Health Information available to you and we may charge you a reasonable fee for the costs of copying, mailing or other supplies associated with your request. We may not charge you a fee if you need the information for a claim for benefits under the Social Security Act or any other state or federal needs-based benefit program. We may deny your request in certain limited circumstances. If we do deny your request, you have the right to have the denial reviewed by a licensed healthcare professional who was not directly involved in the denial of your request, and we will comply with the outcome of the review.

**Right to an Electronic Copy of Electronic Medical Records.** If your Protected Health Information is maintained in an electronic format (known as an electronic medical record or an electronic health record), you have the right to request that an electronic copy of your record be given to you or transmitted to another individual or entity. We will make every effort to provide access to your Protected Health Information in the form or format you request, if it is readily producible in such form or format. If the Protected Health Information is not readily producible in the form or format you request your record will be provided in either our standard electronic format or if you do not want this form or format, a readable hard copy form. We may charge you a reasonable, cost-based fee for the labor associated with transmitting the electronic medical record.

**Right to Get Notice of a Breach.** You have the right to be notified upon a breach of any of your unsecured Protected Health Information.

**Right to Amend.** If you feel that Protected Health Information we have is incorrect or incomplete, you may ask us to amend the information. You have the right to request an amendment for as long as the information is kept by or for our office. To request an amendment, you must make your request, in writing, to the POX.

**Right to an Accounting of Disclosures.** You have the right to request a list of certain disclosures we made of Protected Health Information for purposes other than treatment, payment and health care operations or for which you provided authorization. To request an accounting of disclosures, you must make your request, in writing, to the POX.

**Right to Request Restrictions.** You have the right to request a restriction or limitation on the Protected Health Information we use or disclose for treatment, payment, or health care operations. You also have the right to request a limit on the Protected Health Information we disclose to someone involved in your care or the payment for your care, like a family member or friend. For example, you could ask that we not share information about a particular diagnosis or treatment with your spouse. To request a restriction, you must make your request, in writing, to the POX. We are not required to agree to your request unless you are asking us to restrict the use and disclosure of your Protected Health Information to a health plan for payment or health care operation purposes and such information you wish to restrict pertains solely to a health care item or service for which you have paid us "out-of-pocket" in full.

If we agree, we will comply with your request unless the information is needed to provide you with emergency treatment.

**Out-of-Pocket Payments.** If you paid out-of-pocket (or in other words, you have requested that we not bill your health plan) in full for a specific item or service, you have the right to ask that your Protected Health Information with respect to that item or service not be disclosed to a health plan for purposes of payment or health care operations, and we will honor that request.

**Right to Request Confidential Communications.** You have the right to request that we communicate with you about medical matters in a certain way or at a certain location. For example, you can ask that we only contact you by mail or at work. To request confidential communications, you must make your request, in writing, to our POX. Your request must specify how or where you wish to be contacted. We will accommodate reasonable requests.

**Right to a Paper Copy of This Notice.** You have the right to a paper copy of this notice. You may ask us to give you a copy of this notice at any time. Even if you have agreed to receive this notice electronically, you are still entitled to a paper copy of this notice. To obtain a paper copy of this notice, you must make your request to the POX.

#### **Changes To This Notice**

We reserve the right to change this notice and make the new notice apply to Protected Health Information we already have as well as any information we receive in the future. We will post a copy of our current notice at our office. The notice will contain the effective date on the first page, in the top right-hand corner.

#### **Complaints**

If you believe your privacy rights have been violated, you may file a complaint with our office or with the U.S. Department of Health and Human Services Office of Civil Rights. All complaints must be made in writing. To file a complaint with our office, you should contact and write to the POX at the address on your Home Care Services Agreement. **You will not be penalized for filing a complaint.**

#### **Acknowledgement of Receipt of Privacy Notice (HIPAA)**

By signing this form, you acknowledge that Dare to Care Home Care has given you a copy of its Notice of Provider Privacy Practices the "Privacy Notice"), which explains how your health information will be used, disclosed and handled in various situations. We offer you a copy of the Privacy Notice immediately and we will try to have you sign this Acknowledgement form on your first date of service with us.

If your first date of service with us was due to an emergency, we must try to give you this Notice and get your signature acknowledging receipt of it as soon as we can after the emergency.

\_\_\_\_\_ I have received Dare to Care Home Care Privacy Notice.

\_\_\_\_\_ Dare to Care Home Care has given me the chance to discuss my concerns and questions about the privacy of my health information.

\_\_\_\_\_  
Client/Authorized Representative Signature

\_\_\_\_\_  
Date



### **Advance Directives Notice**

Our Agency believes it is important for clients to be able to express preferences about health care decisions, as well as designate an agent to make health care decisions when the client cannot make or communicate health care decisions.

Our Agency complies with the Colorado Medical Decision Treatment Act by recognizing the right of competent adults to accept or reject medical treatment. Colorado law does not require a consumer to make an advanced directive. A Client does have a right to have an advanced directive. It is the Client and/or Authorized Representative's choice to make an advanced directive at any time. Our Agency will not condition the provision of care, or otherwise discriminate against a Client based on whether the consumer has an advance directive.

A recognized format to express preferences and health decisions in Colorado is the Medical Orders for Scope of Treatment (MOST) Form. The MOST form is a 1-page, 2-sided document that consolidates and summarizes patient preferences for key life-sustaining treatments: CPR, medical interventions and artificially administered nutrition. The program was established by legislation (C.R.S. 18.7) in Colorado in 2010.

- The MOST decision-making process and resulting medical orders are intended for patients who are considered to be at risk for a life-threatening clinical event because they have a serious life-limiting medical condition, which may include advanced frailty.
- The MOST form is completed by a health care professional in conversation with a patient or authorized health care agent, then signed by the patient/agent and a physician, advanced practice nurse (APN), or physician's assistant (PA).
- The physician/APN/PA signature translates patient preferences into medical orders.
- The MOST form "travels" with the patient and must be honored in any setting: hospital, clinic, day surgery, long-term care facility, hospice, or at home. The original is often brightly colored for easy identification, but photocopies, faxes, and electronic scans are also valid.
- The MOST form is always voluntary. Per C.R.S. 15-18.7-108, a healthcare facility shall not require a person to have executed a MOST form as a condition of being admitted to, or receiving medical treatment from, the healthcare facility.
- The MOST form is endorsed as part of the National POLST Program.

Contact for additional information on completing a MOST Form:

**Center for Improving Value in Health Care**

**[www.civhc.org](http://www.civhc.org)**

**950 S. Cherry St. Ste. 208**

**Denver, CO 80246**

**[info@civhc.org](mailto:info@civhc.org)**

720-583-2095

The Agency recommends that if a Client has advance directives to be posted in a conspicuous place in the home. It is the policy of the Agency that staff are to contact 911 in the event of a medical emergency. No staff members are able to provide medical care to a Client.



### Financial Obligations & Billing Notice

The company strives to provide the highest level of care and services to our clients. In order to provide excellent care, we appreciate timely payment for services provided. The company lists below the potential sources of payment and designates the agreed upon expectation of payment for services for each client. It is the expectation of the identified source of payment to be able to provide payment for the services provided. By checking the identified source of payment and signing this notice you agree to the payment method.

Client/Authorized Representative Personal Funds

Medical Insurance Company, identify company

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Long Term Care Insurance, identify company

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Other, please specify: \_\_\_\_\_

The company will provide billing and documentation to a long term care insurance company as a courtesy, but it is ultimately the Client or Authorized Representative's responsibility for payment.

Periodically, the company may make changes to rates for the services we provide. We want to do our part in communicating any changes in billing or payment as proactively as possible before implementation. This includes, but is not limited to, the following:

(a) If the company is implementing a scheduled rate increase to all consumers, we will provide a written notice to each affected consumer at least thirty (30) days before implementation.

(b) The company will advise the consumer of any individual changes, orally and in writing, as soon as possible, but no later than five (5) business days from the date that the company becomes aware of a change.

(c) The company shall not assume power of attorney or guardianship over a consumer utilizing the services of the company, require a consumer to endorse checks over to the HCA, or require a consumer to execute or assign a loan, advance, financial interest, mortgage, or other property in exchange for future services.



### **Emergency Preparedness Plan Information**

The Agency has established an Emergency Preparedness Plan (EPP) designed to manage consumers' care and services in response to the consequences of natural disasters or other emergencies that disrupt the Agency's ability to provide care and services or threatens the lives or safety of its consumers.

The Emergency Preparedness Plan includes the provisions for the management of all staff who are designated to be involved in emergency measures, including the assignment of responsibilities and functions. All staff are informed of their duties and responsible for implementing the emergency preparedness plan. Education for consumers, caregivers and families on how to handle care and treatment, safety and/or well-being during and following instances of natural (disease outbreak, tornado, flood, blizzard, fire, etc.) and other disasters or other similar situations appropriate to the needs of the consumer. The Agency will provide staff education on emergency preparedness so that staff safety is assured.

The Agency will review its emergency preparedness plan after any incident response and on an annual basis, and incorporate into policy any substantive changes. A master copy of the EPP will be maintained by the HCA Manager. The plan will be available for review by all employees.

Emergency situations could include, but are not limited to, the following: pandemic, disease outbreak, active shooter, tornado, blizzard, flood, fire, civil unrest, gas leak, IT system outage, seasonal influenza, etc. The Agency utilizes the 8-step process outlined below to develop an emergency preparedness plan.

1. Review Agency performance objectives for the emergency preparedness plan.
2. Conduct a Risk Assessment to identify potential emergency scenarios.
3. Develop an emergency plan designed to manage consumers' care and services in response to the consequences of natural disasters or other emergencies that disrupt the Agency's ability to provide care and services or threatens the lives or safety of its consumers. Develop life saving Agency action plans for emergency situations (shelter in place, evacuation, etc.).
4. Establish an Incident Command System to respond to an emergency, identify all staff who are designated to be involved in emergency measures, including the assignment of responsibilities and functions.
5. Assess the availability and capabilities of resources for incident stabilization, including local care partners, local, regional and state public health agencies, critical fire and medical services, related public utility services and equipment available.
6. Inform staff of their duties and responsibilities for implementing the emergency preparedness plan. Provide adequate staff education on emergency preparedness so that staff safety is assured.
7. Provide education for consumers, caregivers and families on how to handle care and treatment, safety and/or well-being during and following instances of natural (disease

- outbreak, tornado, flood, blizzard, fire, etc.) and other disasters or other similar situations appropriate to the needs of the consumer.
8. Review an incident and the EPP annually to identify and implement changes to the plan.



### Agency EPP Objectives

In preparation, implementation, use and review of the emergency plan, the Agency seeks to achieve the following objectives:

- Ensure the safety and well-being of all clients and staff members
- Utilize an all-hazards approach to be prepared for potential emergency situations
- Maintain continuity of care for clients
- Coordination and communication with community partners
- Appropriate utilization of available resources
- Continue business operations and maintain Agency financial viability

Below is the contact information for the Agency with any questions about our Emergency Preparedness Plan:

### Agency Contact Information

2851 S. Parker Rd., Ste 440, Aurora, CO 80014  
720-842-2153





### Use of Client Vehicle Authorization

It is possible that the Agency staff members will use a Client's vehicle in the normal course of the employee's duties to provide services outlined on the Care Plan. By signing this authorization, I authorize employees of Dare to Care Home Care to use and operate the Client's vehicle to provide care and services for the Client and only for authorized work purposes.

By allowing an Agency employee to use the Client vehicle, I will ensure the vehicle is:

- Properly licensed and registered
- Safe to use and operate
- Maintains minimum insurance as required by law, which covers Agency employees as authorized drivers

I understand that Dare to Care Home Care insurance policies do not provide coverage for accidents or injuries sustained resulting from use of a Client's vehicle, as determined by applicable laws and involved insurance companies.

I will provide proof of current insurance to the Agency prior to use and operating of the Client's vehicle by an employee. I will notify the Agency if there is a change in such insurance coverage.

#### Client Vehicle Information

Make of Vehicle: \_\_\_\_\_

Model: \_\_\_\_\_

Color and Description: \_\_\_\_\_

License Plate Number: \_\_\_\_\_

\_\_\_\_\_  
Client/Authorized Representative Signature

\_\_\_\_\_  
Date